

School District Organization

School District Legal Status

The Illinois Constitution requires the State to provide for an efficient system of high quality public educational institutions and services in order to achieve the educational development of all persons to the limits of their capabilities.

The General Assembly has implemented this mandate through the creation of school districts. The District is governed by the laws for school districts serving a resident population of not fewer than 1,000 and not more than 500,000.

The School Board constitutes a body corporate that possesses all the usual powers of a corporation for public purposes, and in that name may sue and be sued, purchase, hold and sell personal property and real estate, and enter into such obligations as are authorized by law.

LEGAL REF.: Ill. Constitution, Art. X, Sec. 1.
105 ILCS 5/10-1 et seq.

CROSS REF.: 2:10 (School District Governance), 2:20 (Powers and Duties of the School Board; Indemnification)

ADOPTED: October 18, 2011

School District Organization

District Organization, Operations, and Cooperative Agreements

The District is organized and operates as an Elementary District serving the needs of children in grades Pre-Kindergarten and Grades K to 8 and others as required by the School Code.

The District enters into and participates in joint programs and intergovernmental agreements with units of local government and other school districts in order to jointly provide services and activities in a manner that will increase flexibility, scope of service opportunities, cost reductions, and/or otherwise benefit the District and the community. The Superintendent shall manage these activities to the extent the program or agreement requires the District's participation, and shall provide periodic implementation or operational data and/or reports to the Board concerning these programs and agreements. The District participates in the following joint programs and intergovernmental agreement:

See Policy 8:100 – Relations with Other organizations and Agencies

LEGAL REF.: Ill. Constitution, Art. VII, Sec. 10.
5 ILCS 220/1 et seq.

ADOPTED: November 8, 2006

School District Organization

School District Philosophy

Mission Statement

The Mission of District 113A is to provide students with an academic, social and emotional foundation to lead a productive and fulfilling life.

Educational Philosophy

We, the members of the School Board of District 113A, as legal officials of the State of Illinois, duly elected by the people of our District, feel obligated to the children, youth, and adults of our District to see that their educational needs are met in the best possible manner. We will exhibit leadership in all endeavors toward the improvement of our educational program and facilities.

We believe that the educational program should provide each student with the opportunity to develop to his/her fullest capacity in the areas of mental, physical, and emotional needs.

We feel that the following goal statements should be the achievements of a well-rounded education:

1. The student may attain, commensurate with cognitive abilities, optimum proficiency in reading, writing, listening, speaking, social studies, and math skills, both computational and problem solving.
2. The student may develop an understanding of self: personality, strengths, weaknesses, and general capabilities.
3. The student may develop an ethical sense which will help the personal manifestation of tolerance, kindness, and justice to all others.
4. The student may develop an appreciation for interpersonal relationships both in the family and in the community.
5. The student may develop skills for effective participation in the democratic processes.
6. The student may develop knowledge and understanding of the natural and physical environment.
7. The student may develop economic competence as a consumer.
8. The student may develop saleable skills and vocational competence.
9. The student may explore and develop an appreciation of the arts.
10. The student may develop wise use of leisure time.
11. The student may develop zeal for continuous learning and self-improvement.
12. The student may be exposed to the world of work.

We will strive to provide the citizens of this community with the most complete educational program possible. Every effort will be made to:

1. Make the best use of the physical plant that was provided by the taxpayers.
2. Secure in the judgment of the School Board the best personnel available.
3. Advise and inform the lay public from time to time of all school activities and to seek their advice.
4. Provide the highest type of moral, ethical, and professional leadership.
5. Inform the employed personnel of any actions of the School Board pertinent to their particular interests.
6. Maintain priorities consistent with the educational goals and philosophy of the District.

CROSS REF: 2:10 (School District Governance), 3:10 (Goals and Objectives), 6:10
(Educational Philosophy and Objectives)

ADOPTED: February 10, 2003

REVISED: July 23, 2014

School Board

School District Governance

The District is governed by a Board of Education consisting of 7 members. The Board's powers and duties include the authority to adopt, enforce, and monitor all policies for the management and governance of the District's schools.

Official action by the School Board may only occur at a duly called and legally conducted meeting at which a quorum is physically present.

As stated in the Board member oath of office prescribed by the School Code, a Board member has no legal authority as an individual.

The primary function of the Board of Education of Lemont-Bromberek CSD 113A is to govern the District. In fulfilling this function, the Board shall hire a Superintendent of Schools to be the Chief Executive Officer of the District. The primary function of the Superintendent shall be to manage the District through effective leadership, organization and administration.

In governing the District, the Board shall clearly define its Mission and determine what needs to be done on a long and short-term basis to achieve this Mission. In doing this, the Board, with the assistance of the Superintendent, shall develop and articulate a Vision for the District along with a long-range plan to achieve the Vision. Annually, the Board shall develop goals/expectations for the District that shall move the District on a continuum toward its Vision and Mission.

The Board shall approve policies that define the parameters for its behavior as well as the behavior of the staff in administering/implementing the expectations of the Board. It also shall continuously monitor the performance of the District and the Superintendent to ensure that the District is on course of continuous improvement toward its Vision and Mission. The processes and procedures for monitoring the district and Superintendent shall be developed/reviewed in cooperation with the Superintendent and shall include the sources of data required to fulfill these responsibilities.

LEGAL REF.: 5 ILCS 120/1.02.
105 ILCS 5/10-1, 5/10-10, 5/10-12, 5/10-16.5, 5/10-16.7, and 5/10-20.5.

CROSS REF.: 1:10 (School District Legal Status), 2:20 (Powers and Duties of the School Board; Indemnification), 2:80 (Board Member Oath and Conduct), 2:110 (Qualifications, Term and Duties of Board Officers), 2:120 (Board Member Development), 2:150 (Committees), 2:200 (Types of School Board Meetings), 2:220 (School Board Meeting Procedure)

ADOPTED: November 13, 2012

School Board

Board-Superintendent Relationship

The School Board employs and evaluates the Superintendent and holds him or her responsible for the operation of the District in accordance with Board policies and State and federal law.

The Board-Superintendent relationship is based on mutual respect for their complementary roles. The relationship requires clear communication of expectations regarding the duties and responsibilities of both the Board and Superintendent.

The Board hires, evaluates, and seeks the recommendations of the Superintendent as the District chief executive officer. The Board adopts policies necessary to provide general direction for the District and to encourage achievement of District goals. The Superintendent develops plans, programs, and procedures needed to implement the policies and directs the District's day-to-day operations.

Board-Superintendent Relations

Recognizing that the effective governance and management of the District requires a close working relationship between the Board of Education and the Superintendent, it is the intent of the Board to develop a strong working partnership with the Superintendent.

To this end, the Board delegates to the Superintendent the responsibility for being the Chief Executive Officer of the District. In doing so, the Board and Board members individually shall:

- Establish annual goals (expectations) for the District and, when appropriate, for the Superintendent. It shall be the Superintendent's responsibility to assure that these goals are addressed and to apprise the Board as to progress being made relative to them according to a schedule agreed upon between the Board and the Superintendent.
- Objectively evaluate the Superintendent's performance no less than annually. The evaluation shall encompass the Superintendent's performance as it relates to his/her job description, role expectation and the fulfillment of District and personal goals.
- Apprise the Superintendent of any inquiries received relative to questions, concerns, etc. and to whom the individual making such inquiry was directed.

LEGAL REF.: 105 ILCS 5/10-16.7 and 5/10-21.4.

CROSS REF.: 3:40 (Superintendent)

ADOPTED: March 14, 2007

General School Administration

Goals and Objectives

The Superintendent directs the administration in order to manage the School District and to facilitate the implementation of a quality educational program in alignment with Board of Education policy 1:30, *School District Philosophy*. Specific goals and objectives are to:

1. Provide educational expertise.
2. Plan, organize, implement, and evaluate educational programs that will provide for students' mastery of the Illinois Learning Standards.
3. Meet or exceed student performance and academic improvement goals established by the Board.
4. Develop and maintain channels for communication between the school and community.
5. Develop an administrative procedures manual and handbooks for personnel and students that are aligned with Board policy.
6. Manage the District's fiscal and business activities to ensure financial health, cost-effectiveness, and protection of the District's assets.
7. Provide for the proper use, reasonable care, and appropriate maintenance of the District's real and personal property, including buildings, equipment, and supplies.

LEGAL REF.: 105 ILCS 5/10-16.7, 5/10-21.4, and 5/10-21.4a.

CROSS REF.: 1:30 (School District Philosophy), 2:20 (Powers and Duties of the School Board; Indemnification), 2:130 (Board Superintendent Relationship), 3:40 (Superintendent), 3:50 (Administrative Personnel Other Than the Superintendent), 3:60 (Administrative Responsibility of the Building Principal), 6:10 (Educational Philosophy and Objectives)

ADOPTED: October 18, 2011

General School Administration

Chain of Command

The Superintendent shall develop an organizational chart indicating the channels of authority and reporting relationships for school personnel. These channels should be followed, and no level should be by-passed except in unusual situations.

All personnel should refer matters requiring administrative action to the responsible administrator, and may appeal a decision to a higher administrative officer. Whenever possible, each employee should be responsible to only one immediate supervisor. Where this is not possible, the division of responsibility must be clear.

CROSS REF.: 1:20 (District Organization, Operations, and Cooperative Agreements), 2:140 (Communications To and From the Board), 3:70 (Succession of Authority), 8:110 (Public Suggestions and Complaints)

ADOPTED: February 10, 2003

Operational Services

Accounting and Audits

The School District's accounting and audit services shall comply with the *Requirements for Accounting, Budgeting, Financial Reporting, and Auditing*, as adopted by the Illinois State Board of Education, State and federal laws and regulations, and generally accepted accounting principles. Determination of liabilities and assets, prioritization of expenditures of governmental funds, and provisions for accounting disclosures shall be made in accordance with government accounting standards as directed by the auditor designated by the Board. The Superintendent or Treasurer, in addition to other assigned financial responsibilities, shall report monthly on the District's financial performance, both income and expense, in relation to the financial plan represented in the budget.

Annual Audit

At the close of each fiscal year, the Superintendent shall arrange an audit of the District funds, accounts, statements, and other financial matters. The audit shall be performed by an independent certified public accountant designated by the Board and be conducted in conformance with prescribed standards and legal requirements. A complete and detailed written audit report shall be provided to each Board member and to the Superintendent.

The Superintendent or Treasurer shall annually, on or before October 15, submit an original and one copy of the audit to the appropriate Intermediate Service Center.

Annual Financial Report

The Superintendent or designee shall annually prepare and submit the Annual Financial Report on a timely basis using the form adopted by the Illinois State Board of Education. The Superintendent or Treasurer shall review and discuss the Annual Financial Report with the Board before it is submitted.

Inventories

The Superintendent or designee is responsible for establishing and maintaining accurate inventory records. The inventory record of supplies and equipment shall include a description of each item, quantity, location, purchase date, and cost or estimated replacement cost.

Disposition of District Property

The Superintendent or designee shall notify the Board, as necessary, of the following so that the Board may consider its disposition: (1) District personal property (property other than buildings and land) that is no longer needed for school purposes, and (2) school site, building, or other real estate that is unnecessary, unsuitable, or inconvenient.

Controls for Revolving Funds and Petty Cash

Revolving funds and the petty cash system are established in Board policy 4:50, *Payment Procedures*. The Superintendent or designee shall: (1) designate a custodian for each revolving fund and petty cash fund, (2) obtain a bond for each fund custodian, and (3) maintain the funds in compliance with this policy, State law, and Illinois State Board of Education rules. A check for the petty cash fund may be drawn payable to the designated petty cash custodian. Bank accounts for revolving funds are limited to a maximum balance of \$500.00. All expenditures from these bank accounts must be directly related to the purpose for which the account was established and supported with documentation, including signed invoices or receipts. All deposits into these bank accounts must be

accompanied with a clear description of their intended purpose. The Superintendent or designee shall include checks written to reimburse revolving funds on the Board's monthly listing of bills indicating the recipient and including an explanation.

Control Requirements for Checks

The Board must approve all bank accounts opened or established in the District's or a District school's name or with the District's Federal Employer Identification Number. All checks issued by the School District must be signed by either the Treasurer or Board President, except that checks from an account containing student activity funds and revolving accounts may be signed by the respective account custodian.

Internal Controls

The Superintendent is primarily responsible for establishing and implementing a system of internal controls for safeguarding the District's financial condition; the Board, however, will oversee these safeguards. The control objectives are to ensure efficient business and financial practices, reliable financial reporting, and compliance with State law and Board policies, and to prevent losses from fraud, employee error, misrepresentation by third parties, or imprudent employee action.

The Superintendent or designee shall annually audit the District's financial and business operations for compliance with established internal controls and provide the results to the Board. The Board may from time-to-time engage a third-party to audit internal controls in addition to the annual audit.

The District's system of internal controls shall include the following:

1. All financial transactions must be properly authorized and documented.
2. Financial records and data must be accurate and complete.
3. Accounts payable must be accurate and punctual.
4. District assets must be protected from loss or misuse.
5. Incompatible duties should be segregated, if possible.
6. Accounting records must be reconciled monthly.
7. Equipment and supplies must be safeguarded.
8. Staff members with financial or business responsibilities must be properly trained and supervised, and must perform their responsibilities with utmost care and competence.
9. Any unnecessary weaknesses or financial risks must be promptly corrected and reported to the Board at their next regular meeting.

LEGAL REF.: 105 ILCS 5/2-3.27, 5/2-3.28, 5/3-7, 5/3-15.1, 5/5-22, 5/10-21.4, 5/10-20.19, 5/10-22.8, and 5/17-1 et seq.
23 Ill.Admin.Code Part 100.

CROSS REF.: 4:10 (Fiscal and Business Management), 4:50 (Payment Procedures), 4:55 (Use of Credit and Procurement Cards), 4:90 (Activity Funds)

ADOPTED: January 24, 2012

General Personnel

Personnel Records

Please refer to the following collective bargaining agreements:

“Collective Bargaining Agreement Between The Board of Education of Lemont-Bromberek Combined School District 113A and Lemont-Bromberek Council of Local 604, American Federation of Teachers, IFT/AFT, AFL-CIO.”

“Collective Bargaining Agreement between the Board of Education of Lemont-Bromberek Combined School District 113A and the Lemont-Bromberek District 113A, Support Staff Association.”

“Collective Bargaining Agreement Between the Board of Education of Lemont-Bromberek Combined School District 113A and Lemont-Bromberek Council Support Staff of AFT Local 604, American Federation of Teachers, IFT/AFT, AFL-CIO.”

The Superintendent or designee shall manage a process for responding to inquiries by a prospective employer concerning a current or former employee's job performance. The Superintendent shall execute the requirements in the Abused and Neglected Child Reporting Act whenever another school district asks for a reference concerning an applicant who is or was a District employee and was the subject of a report made by a District employee to DCFS.

When requested for information about an employee by an entity other than a prospective employer, the District will only confirm position and employment dates unless the employee has submitted a written request to the Superintendent or designee.

For employees not covered by these agreements:

The Superintendent or designee shall manage the maintenance of personnel records in accordance with State and federal law and School Board policy. Records, as determined by the Superintendent, are retained for all employment applicants, employees, and former employees given the need for the District to document employment-related decisions, evaluate program and staff effectiveness, and comply with government recordkeeping and reporting requirements. Personnel records shall be maintained in the District's administrative office, under the Superintendent's direct supervision.

Access to personnel records is available as follows:

1. An employee will be given access to his or her personnel records according to State law and guidelines developed by the Superintendent.
2. An employee's supervisor or other management employee who has an employment or business-related reason to inspect the record is authorized to have access.
3. Anyone having the respective employee's written consent may have access.
4. Access will be granted to anyone authorized by State or federal law to have access.
5. All other requests for access to personnel information are governed by Board policy 2:250, *Access to District Public Records*.

LLEGAL REF.: 745 ILCS 46/10.
820 ILCS 40/.
23 Ill.Admin.Code §1.660.

CROSS REF.: 2:250 (Access to District's Public Records), 7:340 (Student Records)

ADOPTED: July 19, 2011

Instruction

Assemblies and Ceremonies

Assemblies must be approved by the Building Principal and be consistent with the District's educational objectives.

The District shall not endorse or otherwise promote invocations, benedictions, and group prayers at any school assembly, ceremony, or other school-sponsored activity.

LEGAL REF.: Lee v. Weisman, 112 S.Ct. 2649 (1992).
 Santa Fe Independent School District v. Doe, 120 S.Ct. 2266 (2000).
 Jones v. Clear Creek Independent School District, 977 F.2d 963 (5th Cir., 1992),
 reh'g denied, 983 F.2d 234 (5th Cir., 1992) and *cert. denied*, 113 S.Ct. 2950
 (1993).

CROSS REF.: 6:70 (Teaching About Religion), 6:80 (Teaching About Controversial Issues)

ADOPTED: February 10, 2003

Instruction

Complaints About Curriculum, Instructional Materials, and Programs

Persons with complaints about curriculum, instructional materials, and programs should complete a curriculum objection form and use the Uniform Grievance Procedure. A parent/guardian may request that his/her child be exempt from using a particular instructional material or program by completing a curriculum objection form and using the Uniform Grievance Procedure.

CROSS REF.: 2:260 (Uniform Grievance Procedure)

ADOPTED: June 19, 2012

Students

Communicable and Chronic Infectious Disease

A student with or carrying a communicable and/or chronic infectious disease has all rights, privileges, and services provided by law and the District's policies. The Superintendent will develop procedures for communicable and chronic infectious diseases for the Board's consideration.

LEGAL REF.: 105 ILCS 5/10-21.11.
 410 ILCS 315/2a.
 23 Ill.Admin.Code §§ 1.610 and 226.300.
 77 Ill.Admin.Code Part 690.
 Individuals With Disabilities Education Act, 20 U.S.C. §1400 et seq.
 Rehabilitation Act, Section 504, 29 U.S.C. §794(a).

ADOPTED: July 19, 2011

Students

Food Allergy Management Program

School attendance may increase a student's risk of exposure to allergens that could trigger a food-allergic reaction. A food allergy is an adverse reaction to a food protein mediated by the immune system which immediately reacts causing the release of histamine and other inflammatory chemicals and mediators. While it is not possible for the District to completely eliminate the risks of exposure to allergens when a student is at school, a Food Allergy Management Program using a cooperative effort among students' families, staff members, and students helps the District reduce these risks and provide accommodations and proper treatment for allergic reactions.

School District Supply of Epinephrine Auto-Injectors

The district schools are hereby authorized to maintain a supply of epinephrine auto-injectors, as prescribed by a properly licensed physician, for use by students, school personnel or by the school nurse, as permitted by the Emergency Epinephrine Act. The school nurse is authorized to him/herself administer an epinephrine auto-injector or to provide a district epinephrine auto-injector that meets the prescription on file with the district, to a student, and/or to school personnel, as authorized under an Individual Health Care Action Plan, Illinois Food Allergy Emergency Action Plan and Treatment Authorization Form, or 504 plan. The school nurse is further authorized to administer an epinephrine auto-injector to any student that the school nurse in good faith believes is having an anaphylactic reaction.

The Superintendent, or a designee, shall establish or amend the district guidelines and procedures to properly implement the requirements of the Emergency Epinephrine Act (Public Act 97-361).

This section of the policy is void whenever the Superintendent or designee is, for whatever reason, unable to: (1) obtain for the District a prescription for school epinephrine auto-injectors and a standing protocol from a physician licensed to practice medicine in all its branches, or (2) fill the District's prescription for school epinephrine auto-injectors.

Upon implementation of this subsection and Section 22-30(f) of the School Code, the protections from liability and hold harmless provisions as explained in Section 22-30(c) of the School Code apply.

No one, including without limitation parents/guardians of students, should rely on the District for the availability of an epinephrine auto-injector. This policy does not guarantee the availability of an epinephrine auto-injector, students and their parents/guardians should consult their own physician regarding this medication.

Nothing in this policy shall prohibit any school employee from providing emergency assistance to students, including administering medication.

The Superintendent or designee shall develop and implement a Food Allergy Management Program that:

1. Fully implements the following goals established in the School Code: (a) identifying students with food allergies, (b) preventing exposure to known allergens, (c) responding to allergic reactions with prompt recognition of symptoms and treatment, and (d) educating and training all staff about management of students with food allergies, including administration of medication with an auto-injector, and providing an in-service training program for staff who

work with students that is conducted by a person with expertise in anaphylactic reactions and management.

2. Follows and references the applicable best practices specific to the District's needs in the joint State Board of Education and Ill. Dept. of Public Health publication *Guidelines for Managing Life-Threatening Food Allergies in Schools*, available at:
www.isbe.net/nutrition/pdf/food_allergy_guidelines.pdf.
3. Complies with State and federal law and is in alignment with Board policies.

LEGAL REF.: 105 ILCS 5/2-3.149 and 5/10-22.39.
Guidelines for Managing Life-Threatening Food Allergies in Schools (Guidelines), jointly published by the State Board of Education and Ill. Dept. of Public Health.

CROSS REF.: 4:110 (Transportation), 4:120 (Food Services), 4:170 (Safety), 5:100 (Staff Development Program), 6:120 (Education of Children with Disabilities), 6:240 (Field Trips), 7:250 (Student Support Services), 7:270 (Administering Medicines to Students), 8:100, (Relations with Other Organizations and Agencies)

ADOPTED: May 15, 2012